

5	McCrea vs. Riemann 2024-01417305 Motion to be relieved as counsel of record as to 520 Capital, LP Motion to be relieved as counsel of record as to 520 Capital, LLC	The motion of attorney Stanley Gordon and Gordon & Reynolds Law Firm to withdraw as attorney of record for Defendants 520 Capital LKP and 520 Capital, LLC is GRANTED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on clients. Moving attorney is to give notice.
6	Sui vs. Kexin USC, Inc. 2025-01452561 Motion to Compel Further responses to Production, Set 1	Plaintiff Honsong Sui's Motion to Compel Further Responses to Request For Production of Documents (Set One) is DENIED as moot. The parties were ordered to submit a joint status report regarding any remaining disputes related to the Motion. No status report was filed. Thus, the Court assumes no issues remain and the Motion is moot.
7	Maehara vs. Prime Healthcare La Palma, LLC 2026-01542089 Motion to Compel Arbitration CMC OSC re Sanctions for Failure to Properly Serve	Defendants' Motion to Compel Arbitration is GRANTED. Legal Standard: "General principles of contract law determine whether the parties have entered a binding agreement to arbitrate." (<i>Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC</i> (2012) 55 Cal. 4th 223, 236.) "Generally, an arbitration agreement must be memorialized in writing." (<i>Id.</i>) "A party's acceptance of an agreement to arbitrate may be express, as where a party signs the agreement," but "[a] signed agreement is not necessary, however, and a party's acceptance may be implied in fact[.]" (<i>Id.</i>) "The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (<i>Id.</i>) Application of EFAA: Defendant moves to compel arbitration under the arbitration agreement signed by Plaintiff as part of her onboarding as a Nursing Director. (Defendant's Ex. A.) Plaintiff does not deny executing the agreement but contends the agreement violates the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA). The EFAA generally bars binding arbitration agreements as applied to sexual harassment claims. (See <i>Liu v. Miniso Depot CA, Inc.</i> (2024) 105 Cal.App.5th 791.)

	The EFAA states in part at 9 U.S.C. § 402(a), “at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute. . . no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” The EFAA became effective on 3/3/22. “Federal district court decisions have interpreted the EFAA to apply only where the plaintiff’s sexual harassment related claims are capable of surviving a challenge at the pleading stage, because without such a procedural safeguard a plaintiff could avoid complying with an otherwise valid arbitration agreement by simply adding a baseless sexual harassment claim. [Citation] This appeal does not require us to opine on what threshold, if any, a plaintiff’s sexual harassment related claims must meet before the EFAA becomes applicable because there is no dispute that Liu has adequately pleaded at least two sexual harassment related claims.” (<i>Liu, supra</i>, 105 Cal.App.5th at p. 799, fn. 2.) The language of the EFAA does not reflect an intent to exclude all claims tangentially related to gender discrimination from arbitration, but those arising from “sexual assault” or “sexual harassment” against the plaintiff. Here, Plaintiff generally alleges one of her direct reports became pregnant in 2023. (Complaint, ¶ 21.) Defendant’s CEO allegedly engaged in discrimination against the pregnant employee, who is not a party to this case. (<i>Id.</i>) Plaintiff alleges she suffered retaliation and termination as a result of Plaintiff’s attempts to provide pregnancy accommodations to the pregnant employee and to push back against perceived discrimination against the employee. (¶¶ 21-24.) Plaintiff does not allege that she personally was subject to sexual harassment such as sexual comments or touching. Plaintiff also fails to allege a sexually hostile environment claim, which requires pleading sexually harassing conduct that is “severe or pervasive.” (See Gov. Code § 12940(j)(4)(c); CACI 2521A; <i>Hughes v. Pair</i> (2009) 46 Cal. 4th 1035, 1043.) Plaintiff fails to cite legal authority broadly interpreting the EFAA to govern any claim involving gender or pregnancy-related discrimination, including claims where the Plaintiff herself does not claim to have personally been the subject of sex harassment or discrimination but merely to have spoken up against it. The Court declines to apply the EFAA so broadly in the absence of any binding
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	decisions supporting Plaintiff's broad interpretation of the law. Unconscionability: "[U]nconscionability has both a 'procedural' and a 'substantive' element, the former focusing on 'oppression' or 'surprise' due to unequal bargaining power, the latter on 'overly harsh' or 'one-sided' results." (<i>Armendariz v. Found. Health Psychcare Servs., Inc.</i> (2000) 24 Cal. 4th 83, 114.) "The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (<i>Id.</i>) "But they need not be present in the same degree." (<i>Id.</i>) "Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves." (<i>Id.</i>) "In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (<i>Id.</i>) The Court should consider five factors to determine whether an arbitration agreement is enforceable in the employment context. (<i>Id.</i> at 102.) The agreement must: 1) provide for a neutral arbitrator; 2) provide for more than minimal discovery; 3) require the arbitrator to issue a written decision; 4) provide for the same remedies that would otherwise be available to the employee in court; and 5) not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum. (<i>Id.</i>) California courts have held an individual's failure to read or understand the terms of an arbitration agreement does not alone render it unconscionable. (See <i>Brookwood v. Bank of America</i> (1996) 45 Cal.App.4th 1667, 1674.) Failure to provide a copy of the rules or clearly identify the rules so that the employee could locate them may give rise to a finding of unconscionability. (See <i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal.App.4th 227, 245 [finding moderate level of procedural unconscionability based on adhesive nature and failure to attach or identify governing rules in employment context].) "It is well settled that adhesion contracts in the employment context, that is, those contracts offered to employees on a take-it-or-leave-it basis, typically contain some aspects of procedural unconscionability. Assuming the Agreement here is adhesive in character, this
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		adhesive aspect of an agreement is not dispositive. Courts have observed that when, as here, there is no other indication of oppression or surprise, the degree of procedural unconscionability of an adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high. (<i>Peng v. First Republic Bank</i> (2013) 219 Cal.App.4th 1462, 1470.) Here, Plaintiff contends the agreement is unconscionable because Plaintiff had little opportunity to review the arbitration agreement and it contains terms Plaintiff contends are more favorable to the employer involving injunctive relief, discipline and discharge, and limits appellate review. California courts have generally upheld similar arbitration agreements in the employment context, even when they are required as a condition of employment. As applied to this case, Plaintiff has not shown the agreement improperly favors Defendant, and to the extent the arbitration terms are vague or could be construed to violate California law, the arbitrator must construe the agreement consistent with existing law. Therefore, the motion is granted.
8	Loeffler vs. Association Lien Services, Inc. 2016-00873201 Motion to Tax Costs	On 7/6/26, the Court granted Judgment debtor Jennier Loeffler's Motion to Tax Costs in an amount to be determined after the Court received further information. (ROA 1237.) The Court ordered Loeffler to file a supplemental declaration setting forth a corrected calculation of interest five court days before this hearing, which Loeffler timely filed on 9/14/26. (ROA 1267.) Based on the Loeffler's Supplemental Declaration, the Court TAXES costs in the amount of \$56,195.58.
9	Espinosa vs. Atkin 2025-01457170 Motion for Terminating Sanctions CMC OSC re Failure to Comply with CRC 3.110 (b)	Defendants Oil Crew Services Inc. and Christopher Otken's motion for terminating sanctions against plaintiff Luis Escalera Espinosa is DENIED without prejudice. "[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) "[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) Defendants have shown Plaintiff violated the Court's 5-12-26 Order compelling Plaintiff to serve responses to